

Court No. - 37

Case :- WRIT - C No. - 44193 of 2017

Petitioner :- Vimal Gupta

Respondent :- Executive Engineer, Dakshinanchal Electricity
Dist. Nigam

Counsel for Petitioner :- Vijay Singh Gour

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

The petitioner has come up against the provisional assessment of electricity dues. This court does not have any such jurisdiction unless there is a recovery proceeding initiated in the matter.

Put up tomorrow i.e.20.09.2017 as a fresh case before the appropriate Bench.

Order Date :- 19.9.2017

Ashutosh

Chief Justice's Court

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Petitioner :- Vimal Gupta

Respondent :- Executive Engineer, Dakshinanchal Electricity Dist. Nigam

Counsel for Petitioner :- Vijay Singh Gour

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Yashwant Varma, J.

Heard Sri Vijay Singh Gaur, learned counsel for the petitioner and Shri Baleshwar Chaturvedi, learned counsel for the respondent.

The petitioner, a consumer of the first respondent, has been provisionally assessed for having extracted electricity unauthorisedly. Pursuant to the provisional assessment, the respondents have also raised a demand against him.

We find that the U.P. Electricity Supply Code 2005 puts in place a detailed mechanism for adjudication and disposal of such disputes and claims. The procedure prescribed under the Code would therefore have to be followed by the petitioner in case he chooses to challenge the assessment on merits.

In respect of the prayer of the petitioner for restoration of the electricity connection, learned counsel for the respondent submitted that in case the petitioner deposits 50% of the total amount claimed as due and payable within reasonable time, the respondent would consider his prayer for restoration and re-connection.

Accordingly and with the consent of parties, this writ petition shall stand disposed of with a direction providing that the petitioner shall deposit 50% of the total amount claimed as due and payable within a period of two weeks from today. If such a deposit is made, the first respondent may consider the claim of the petitioner in accordance with law and pass appropriate orders in respect thereof with expedition.

Order Date :- 21.9.2017

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(Yashwant Varma, J.)

(Dilip B. Bhosale, C.J.)